

THE
LEGEND OF KUPIRRI.
OR
The Red Kangaroo.

AN ABORIGINAL TRADITION OF THE
PORT LINCOLN TRIBE.

BY
W. A. CAWTHORNE,
PRINCIPAL OF THE VICTORIA-SQUARE ACADEMY.



KUPIRRI.

ADELAIDE, SOUTH AUSTRALIA.
J. H. LEWIS, PRINTER.
MIDGLEY.

THE
LEGEND OF KUPIRRI.
OR
The Red Kangaroo.

AN ABORIGINAL TRADITION OF THE
PORT LINCOLN TRIBE.

BY
W. A. CAWTHORNE,
PRINCIPAL OF THE VICTORIA-SQUARE ACADEMY.



KUPIRRI.

ADELAIDE, SOUTH AUSTRALIA.
J. H. LEWIS, PRINTER.

MCMXXV.

The Project Gutenberg eBook of The Legend of Kupirri, or, The Red Kangaroo

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Legend of Kupirri, or, The Red Kangaroo

Author: W. A. Cawthorne

Release date: January 1, 2018 [eBook #56284]

Most recently updated: October 23, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/56284

Credits: Produced by Chuck Greif & The Online Distributed
Proofreading Team at <http://www.pgdp.net> (This file was
produced from scans of public domain works at The
National
Library of Australia.)

*** START OF THE PROJECT GUTENBERG EBOOK THE LEGEND
OF KUPIRRI, OR, THE RED KANGAROO ***

Preface.
The Legend
The Tale Of Purley.
Notes, &c.



PILLA AND INDA.

THE LEGEND OF KUPIRRI,

OR
The Red Kangaroo.

AN ABORIGINAL TRADITION OF THE
PORT LINCOLN TRIBE.

BY
W. A. CAWTHORNE,
PRINCIPAL OF THE VICTORIA-SQUARE ACADEMY.



KUPIRRI.

ADELAIDE, SOUTH AUSTRALIA:
J. H. LEWIS, PRINTER,
MDCCCLVIII.

PREFACE.

THE Natives of a certain district of Port Lincoln, when questioned as to the cause of the non-existence of that species of Kangaroo known to the Colonists as the great *Red Kangaroo*, have the following legend in reference to its extinction:—

“In former times, one of the species, inhabited Port Lincoln, his name was *Kupirri*, he was of stupendous size, and devoured all those who attempted to spear him. His very appearance inspired the natives with overwhelming terror, so that they lost all presence of mind, even flinging away their *midlahs*. At last, however, a match was found for the monster Kangaroo, in two renowned hunters, Pilla and Inda, who, falling upon its track near Port Lincoln, on the range stretching to the North, followed and overtook it on Mount Nilarro. Finding it asleep, they at once attacked it, but before they could quite kill it, their spears became blunt; they then quarrelled with each other, and Pilla stabbed his antagonist with one of the blunt spears, in many places, while he himself received a severe blow over his nose. Becoming reconciled, the friends again attacked and killed *Kupirri* and, on opening it, found, to their utter astonishment, the dead bodies of their comrades previously devoured by the monster. Being no less skilled in the medical art than in hunting, they succeeded in reviving and healing these unfortunate men. They all then betook themselves to roasting and devouring *Kupirri* in return. The feast over, and their bodies comfortably greased, they returned to their mourning families, who received them with every demonstration of joy at the happy termination of their adventures. The two heroes were afterwards metamorphosed into, and gave origin to, two species of animals—the *Opposum*, and the *Native Cat*—retaining as such, not only their names, but also the scars of the wounds that they inflicted on each other—in the shape of a furrow down the former’s nose, and of a number of white spots sprinkled over the skin of the latter.^[A]

[A] From a pamphlet by C. W. Schurmann, 1846.

NOTE 1.—In the Breccia caves of the Portland district, and elsewhere, huge bones of an extinct kangaroo have been found. It is possible, therefore, that this legend has some foundation in fact, which in the lapse of time has moulded itself in the present form.

NOTE 2.—“I cannot sit down without making an allusion to a cognate subject that for a very long time has occupied my attention. I allude to the legends and traditions of the aborigines of Australia. It is possible that the gentlemen present may doubt of their existence, but I beg to assure them that the tribes of Australia are not so barren in these particulars as may be imagined. There is scarcely a constellation in the heavens that has not its appropriate legend, and the animals of the land are invested with the supernatural. Capes, promontories, and islands of our shores are transformations, or are otherwise connected with legendary lore. The origin of their own species, and their various ceremonies, abound with singular and exotic ideas, and the wildest fancies. The Australian savage has his myths, legends, and poetry, like his brothers of other regions; and I mention it for the purpose of throwing out a suggestion to the members of the Philosophical Society, that it would be an interesting work, and worthy of the employment of some portion of their funds to collect and collate together these treasures, before the race disappears from off the face of the land. Sir George Grey has done as much for New Zealand, and I sincerely hope that ere long the same may be accomplished for Australia.”

[Extracted from the 4th Annual Report of the Adelaide Philosophical Society, from a paper on
“The Song of Hiawatha,” by the Author.]

THE LEGEND
OF
THE RED KANGAROO.

The rippling waves of Boston Bay
Lay glimm'ring in the fading day
Growing shadows were length'ning o'er,
Dark'ning the distant islet's shore.

Far away in the open sea,
Beyond the Cape Catastrophe,
The sun shot forth its golden ray,
And kiss'd each wave in parting play.

Gorg'ous colours o'erspread the sky,
From farthest verge that's scann'd by eye,
To where the sun's effulgent rays
Pour'd forth its last resplendent blaze.

Majestic clouds were pil'd and mass'd,
In form sublime and grand in rest,
In true perspective—line on line,
Till mix'd and lost in hues divine.

Splashing loud on the pebbly beach,
The dimpling waves were chasing each
Filling inlet, dent, and bay,
With murmurs soft, and sparkling spray.

The scrub wav'd gently to and fro,
A green irradiating bow;
The she-oak in the distant view,
Whisper'd a mournful, sad adieu.

The bold hills in a rounding line,
Glorious in a sunny clime,
Purpling when the bright eve declines,
Dark'ning as day its rule resigns.

The tribe was camp'd beside a hill,
Near a transparent gurgling rill;
On a bold bluff the *wurlovs* stood

On a bold plain the warriors stood,
Within a copse of wattle-wood.

The warriors were far away,
Creeping on their unwary prey—
Girdling them in a treach'rous ring,
With artful deep manoeuv'ring.

Some spearing fish upon the coast,
Where Koonta's mystic stream is lost;
Some sneaking emu on the plain,
Searching *Kupe*, or snaring game.

Or, listless from a cool retreat,
Were watching *Cowee*'s great heart beat,
Its ebb and flow, its wondrous tide,
Marma's wayward, beauteous bride.

The jocund laugh resounds along,
Tho *lubras* mark their little throng:
The scornful look and air they bore,
Engag'd in strife and mimic war.

Behold them on the open plain,
Naked as they from nature came
In fierce opposing bands they range,
Spears rattle, and dire words exchange.

In childish accents, "Death," they cry,
And mockingly the foe defy;
With quiv'ring limbs, and glaring eye,
They rush to conquer or to die.

Their mimic spears hiss through the air,
And whirring *waddies* cause despair;
Their shields resound with awful blows—
The ground is strewn with friends and foes.

Now o'er the hills the *lubras* come,

In Indian file, by one and one;
Each bears the produce of the day,
Of roots, and herbs, and wallaby.

With weary step they hasten down,
And cast their burdens on the ground,
And cooey for their absent child,
And waiting—gossip ere the while:

“How at the last *corrobboree*,
Ngamma’s familiarity
With Yerku, shock’d all decency,
Hence Bultawilta’s jealousy.

“How saucy Tekartoo behav’d,
While her husband in *palti* play’d;
And caused the stranger’s sly advance,
And quarrelling, broke up the dance:

“What dreadful things the *burkas* said,
For Tau had ate the sacred leg;
How *Kuinyo* would at night appear,
With stomach vast, and snaky hair.

“And Paune’s wonderful escape
From cunning sorcerer’s deadly hate,
As in the reeds he hiding lay,
A bird by night, a bush by day.”

Murmurs confus’d sound o’er the hill.
Now near, then far, now loud, then shrill;
Soon seen are many hunters bold,
Like full of game and tales untold!

To the camp they are drawing near,
Very emulous to appear!
Each more famous than the other,
In the sight of wife and mother.

Did ever see such kangaroo,
As now borne past in grand review,
Besides the fattest of emu?—
Prais'd be the Manurapindoo!

All stare, and gloat, and feast their eyes,
As the game spread forth in glory lies;
The *kuttas* soon at work resound,
And women, joking, dig the ground.

Some a hole of just size prepare,
And leaves and stones arrange with care
Well heated these, and duly laid,
Thus the native oven is made.

The meal enjoy'd—their bodies greas'd
They chat and laugh, or loll at ease;
Hunting and warlike stories tell,
Of sorcery, magic, charm, or spell.

Of wondrous feats, and jerks, and jumps,
Of water-holes, and scrub and stumps;
Of narrow 'scapes, and dreadful leaps,
Of swamps, and storms, and flooded creeks.

But there were none among the brave
So skill'd, so witty, or so grave,
Or could recite the tales of yore,
Which he knew by many a score.

Purley, the star—such was his name,
Through all the tribes had spread his fame
As hunter, warrior, *burka* wise,
In dance or song durst none despise.

Now him around, in circles sat—
The boys in front, the elders back;
With gaping mouths and wond'ring eyes,

They laugh and marvel with surprise!

The tribe enwrapp'd in shades of night,
While rows of fire are twinkling bright,
Loud wails the plaintive monotone,
To cure the pain, or soothe the gnome.

“Now behold the road before me,
How beautiful throughout Yerna,
Watteyernorlo Tappandē,
Miny-el-ity yarluke an-ambe.”

“Now to the water-hole we've come,
We two, together, at Tunte nung.”
Thus corrobories they sing,
How sweet the memories they bring.

But others, of more mournful frame,
Pierce the air in a tender strain,
Sing of the lost beloved one—
“O, why did you die! my son! my son!”

Cow'ring nearer, a young man asks,
“Tell us of the great First and Last?
Who was, and who is yet to come,
And why gaze we oft on setting sun?”

“Why the *burkas* in silence meet,
Why in uncertain whispers speak.
In wild and lonely bushy creek,
And there enchanted words repeat?

For what the magic weapons use,
Why ourselves in warm blood suffuse,
Ord'ring women from th' sacred place,
Tell us the myst'ries of our race?”

No! no! shouts the great *Uwinda*,
Rather tell us the tale of Inda,

And the famous hunter, Pilla,
And their deeds upon the Willa.

Crowding, then, around the *wurley*,
They listen to the tale of Purley,
Who in a measur'd tone begins,
Of the famous Kangarooing.



Carrying the fire-stick.

THE TALE OF PURLEY.

“In the long past, in days of yore,
Such days, alas! return no more!
Our tribe liv’d on the Wonga plain,
That stretches southward to the main.

“In all good things they richly shar’d,
Sumptuously on dainties far’d;
With bursting nets of game and fish,
In implements surpassing rich.

“We were, of all, the greatest tribe
That in the North or West reside;
Our dire enchantments never fail’d,
Northern sorcerers ’ fore them quail’d.

“Victors in ev’ry hunt and battle,
’Twas enough our spears to rattle;
Our enemies would fly apace,
Though rarely winners in the race.

“But though so powerful and great,
We dwindled at a rapid rate;
For hunting when the tribe would go,
There would be missing one or so.

“Suggest, could none of us a cause,
Whereby this sad mysterious loss
Could be explain’d, or could be trac’d,
For death had doom’d our noble race.

“It was resolv’d, before too late,
A gen’ral hunting match to make;
The scrub, and swamps, and plains to scour,
To find the foe, or magic power.

“Everywhere searching, left and right,
Till Nilarro appear’d in sight;
When lo! a monster on them springs

When lo! a monster on them springs,
Four men to ground he quickly brings.

“The unnatural creature, then,
Instead of grass ate up the men!
They lift no spear, they lift no *wirri*,
Powerless before Kupirri.

“Behold! like burnt sticks in a row,
By’s tail he fells them with a blow!
Enrag’d, he lashes it about,
And quickly puts them to the rout!

“Homeward they rush, nor look behind,
Frighten’d at e’en the rustling wind;
Frighten’d at the grass-tree stump,
Frighten’d at every stone and lump.

“Abandon’d all, both shield and spear,
Demented by their madd’ning fear,
Nought else they know, nought else repeat,
Than their sad loss—their dread retreat.

“Long and loud the death-wail rose,
They cut their arms—blood freely flows!
While tears run down the sadden’d cheek,
And on their breast they strike and beat.

“ ‘My son! my brother! O my friend!’
The women thus lament their end;
While *burkas* try all magic art,
To cause the monster to depart.

“Oh! then were long days of sadness,
Unavailing wrath, and madness!
But who, they ask, can kill Kupirri?
Can bold man, can charm or *wirri*?

“Then they arose in wild despair,

Invoke the gnomes of earth and air
Dread magic rites initiate,
All spirits bad propitiate.

“The *warra warra* now declare
Sure success to those who’d dare
Their monster-enemy to face,
The scourge of their devoted race.

“Murmurs of doubt run through the throng—
Who able was, or who was strong?
With what weapons could they fight
The monster on Nilarro’s height?

“But none among the young or old,
As hunters, were so brave or bold
As the noted fighter “Inda,”
And his far-famed brother “Pilla.”

“ ‘We go,’ they in one voice exclaim,
‘Though we should ne’er return again,
We’ll perish, or we’ll victors be
O’er this cursed beast, Kupirri.’

“Then with great skill, and with rare art,
They well anoint and paint each part
With mystic dots, with stripe and line,
From head to foot in *karkoo* shine.

“Aloft a *witto* nods and bends,
And grace to every motion lends;
A long white bone adorns the nose,
While on the forehead—teeth in rows.

“With a well-tried shield and spear,
Wirri, and other war-like gear,
Kyahs, *wommeras*, and *kuttas*,
And the mystic *Paityowattas*.

“Well versed in all ancient curses,
Which, when one properly rehearses.
Neither bird, beast, nor fish escape,
But, unresisting, yield to fate.

“Bright was the sun that shone that day,
As the daring brothers bent their way;
Sounds lamentable rise on high,
Mingl’d with shouts that rend the sky.

“Then solitary, on they go,
Their progress mark—firm, stealthy, slow;
Eyes, like their steps, most firmly bent,
Both on the one great aim intent.

“Through heat and scrub, all that long day,
Till the last sun-beam died away;
Then on a dreary, stony height,
Repeat their charms, and camp the night.

“Just where glimmers th’ early dawn,
Loom’d grandly in the ruddy morn,
Mount Nilarro, so vast and gaunt,
The abyss of *Kupirri*’s haunt.

“Bald were its hoary sides, and steep
Its gullies, precipitous and deep;
A silent stream, from a hidden source,
Pursued its dark meand’ring course.

“Little they ate, they little said,
But on their way they quickly sped;
With eagle-glances scan the land,
And closely watch on either hand.

“Another night they try to rest
In vain—with horrid fears opprest;
For they in fancy often see

The Red Kangaroo, *Kupirri*!

“Half valiant, yet half affrighted,
Arm’d with dark words recited,
March on they, eager for the fray,
Thirsting for their insatiate prey.

“O’er hill and dale they longing seek,
Through prickly scrub and winding creek;
Anxiously from the heights, review
The land of the Red Kangaroo.

“Suddenly, in a gulley deep,
Behold the creature fast asleep!
Each at each in mute wonder stare,
While sinking, almost, with despair.

“*Kupirri* moves his wondrous tail,
Their courage ’gan direct to fail!
His ears, immense, he wags about,
And opes, awide, his awful snout!

“He sleeps—shut are his dreadful eyes,
Nor heeds his daring enemies,
Who in right earnest now prepare,
To slaughter him as he lies there.

“Strike him with the blood of circumcision!
Strike him with the tuft of eagle feathers!
Strike him with the girdle—the *paltando*!
Strike him with the *manga*, the *kundando*!

“With mystic curse they imprecate!
More soundly sleeps the monster great!
Forth fly the deadly quiv’ring spears!
Kupirri only shakes his ears!

“Trying then the long *uwinda*:
Fearlessly the hunter, Inda,

Steps up, and gives a deadly thrust,
He sprawling, kicking, sends the dust!

“Now Pilla, bold, with strong *wirri*,
Batters, manfully, *Kupirri*,
Madden’d by pain he vainly tries
From his enchanted sleep to rise.

“Then they the blood-drench’d *warpoo* try,
Sneaking upon him, very sly;
Though standing by his panting side,
In vain they try to pierce his hide.

“But now! oh most unfortunate!
The magic of an adverse fate!
The hunters ’gan to disagree,
In the presence of *Kupirri*.

“Alas! for these two valiant brothers,
They fight, and almost kill each other,
Until at last, their fury spent,
They see their folly and relent.

“ ’Twas well, for lo! the earth did quake
With the monster’s efforts to awake;
They bravely rush, renew the strife,
Kupirri yields, with groans, his life!

“Terrible was his dying pain,
Agonising his pond’rous frame;
Terrible were his mortal throes,
Horror-struck stood by his foes.

“A blacken’d rent marks the dire place,
Where died the last of *Kupirri*’s race;
Rarely do men to it repair,
Very rarely go hunting there.

“They leap for joy, and jump, and shout

They leap for joy, and jump, and shout,
And in steps mystic dance about;
Refreshed now from their late affray,
Proceed at once to divide their prey.

“But with incredible surprise
They see—doubting their own eyes,
Their dead companions he had ate
When Kupirri they last had met.

“But skilful they in magic art,
They lay the bodies wide apart,
Then conq’ring in spiritual strife,
They slowly raise the dead to life.

“Round their old foe themselves they seat,
Ready his choicest parts to eat.
And thus their just revenge appease,
And with his fat their bodies grease.

“Laden with prey they homeward bend,
Each talking with his late dead friend,
Chatting of surprise and greeting,
That ’wait their unexpected meeting.

“Soon the great Wonga plain appears,
They strike their shields, and raise their spears;
With hasty strides now onwards press,
Nor heed the place or time of rest.

“Ne’er was there such a day as that,
When the late-dead by the living sat;
Nor were such *paltis* ever sung,
As through the woods all that night rung.

“Very often they told the tale
How their courage began to fail,
How with *kutta*, spear, and *wirri*,
They at length did slay Kupirri.

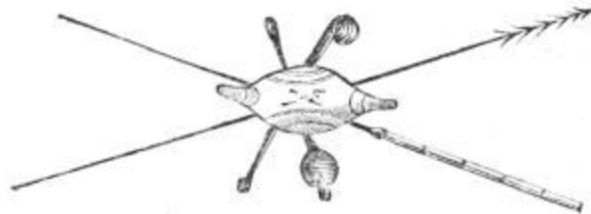
“Time roll’d on, the hunters brave
Were fast descending to the grave,
The youths would oft recite, in play,
The heroic deeds of a former day.

“Years pass by, the period came
When to perpetuate their fame
Our tribe great mystic rites perform’d,
Pilla and Inda were transform’d.

“Behold ‘Pilla,’ the *Native Cat*!
Varied spots adorn his back,
For thus his cruel brother mark’d him,
When he in quarrel spear’d him,

“Behold the *Opposum*, ‘Inda,’
His face streak’d by the *uwinda*,
Great Pilla’s unnatural deed,
When they in fight both disagreed.

“Henceforth our tribe did dwell in peace,
Nevermore hurt by monstrous beast;
They multiplied and grew apace,
And so arose our mighty race.”



The Emu.

Finish'd the tale, Purley arose,
The list'ners hasten to repose;
The camp is sunk in quiet sleep,
The moon-beams through the foliage peep.

The cricket chirps beneath the grass,
The wodlalla bends beneath the blast;
The fragrant wattle scents the air,
The yerké skips around his lair.

Heaven's bridegroom, in all his pride,
Doth forth in silv'ry glory ride;
The evil spirits try in vain,
Their unholy hands with blood to stain.

Loudly wails the voice "kokunya,"
The native trembles in his gunya;
The lonely mawpawк softly coos,
As coyishly his mate he woos.

Upon the beach, the gentle roll
Speaks sweet words to the list'ning soul;
The wind sighs in the patta tree,
Like a mother's softest lullaby.

Beauteous nature beams around,
Breathing many a pleasing sound!
We linger o'er the enchanted scene,
Sweet vision of a heavenly dream!



Grass Tree.

NOTES, &c.

“Artful, deep manœuvring.”—The natives have various methods to capture their prey, all indicative of true huntsmen’s craft. Sneaking the emu, a wary bird, is an instance where, With a screen of boughs before him, the native gradually creeps within spear-range, and soon gains his prize.

“Ancient Curses.”—Such curses are used when hunting. The different kinds of game have different curses.

“Abandoned all.”—When a native throws away his spears, it is a sign of the greatest fear and distress.

“Boston Bay.”—The harbour of Port Lincoln. It is protected by Boston Island.

“Bultawilta.”—A man’s name.

“Burka.”—An aged man, the last stage through which men pass, and with whom the knowledge of all charms, ceremonies, &c., is deposited.

“Bodies greased.”—A luxury highly appreciated by the natives. Captain Sturt and Sir T. Mitchell bear testimony, that to a naked savage, in a hot climate, it is, and must be, a great luxury. It supple the skin, and prevents it chapping. The fat of all game is used for this purpose.

“Boys in front.”—Descriptive of the order in which, on all public occasions, the natives arrange themselves; the children are invariably placed in front.

“Cape Catastrophe.”—The South point of Port Lincoln district. Here Captain Flinders had the misfortune to lose a boat’s crew, hence its ominous name.

“Cooey.”—A loud call.

“Cut their arms.”—To this may be added, singing the hair off the head with live coals, putting a large mass of white clay on the head, and smearing the body over with the same, as signs of mourning for the dead.

“Corrobbories.”—Simply a play, and the highest, both in scope and character of all their amusements. It is generally performed at night, but occasionally in the day. The words sung are frequently meaningless, or handed down from so remote a period as to have lost all meaning. The corrobbory in the text is literally translated. Any incident, comic or grave, trivial or important, may form the words of a corrobbory. The song rarely exceeds two lines.

“Cowee.”—Water—the sea.

“Gunya.”—Hut—the same as wurley.

“Heaven’s bridegroom.”—In the native mythology, the sun is a woman, and the moon a man. The former beats the latter till he dies; but dying, he revives, and this goes on for ever hence the phases of the moon.

“Kyahs.”—Implements of war.

“Kokunya.”—The curlew, said at times to be inhabited with the spirit of death. If a native dreams of his visitation, he dies.

“Kuttas.”—Implements for digging.

“Kupe.”—A grub inhabiting gum-trees, grass-sticks, &c. Though the softest of creatures, it penetrates the hardest of woods. Its natural history is little known. When *once* eaten by Europeans it is so relished as never after to be despised. The difficulty lies in the *first* attempt.

“Kuinyo.”—A fabulous being—death.

“Kupirri.”—The proper name for the red kangaroo.

“Lubras.”—It is singular, that whilst the language is replete with terms of relationship, there should be found no distinction in the terms for husband and wife. The word *lubra* is used indifferently for either.

“Paityowattas.”—Small instruments used in incantations.

Page 7. “Behold them on the open plain,” &c.—Illustrative of children’s games, to which may be added the ball, and what is known to Europeans as the scratch-cradle.

Page 15. “Cowering nearer,” &c.—The current belief of the tribe.

Page 17. “In all good things,” &c.—Describes what, in native estimation, a man or a tribe’s welfare consists.

Page 20. “Then with great skill,” &c.—Descriptive of a warrior’s dress.

Page 21. “Repeat their charms,” &c.—No native retires to rest without some such precaution; their belief is, that evil spirits are busy, in the darkness, to kill them. Fire is a sure guardian. The writer once met a native, many miles from his camp, benighted; he carried a large fire-stick for protection.

“Paune.”—The name given to the ninth child. Sorcerers can change themselves into any shape or substance, instantaneously. Each tribe regards the other as peculiar adepts in sorcery. This belief in witchcraft exercises a most baneful influence on the native mind. It is the source of nearly all their quarrels and violent deaths.

“Patta tree.”—A kind of gum tree.

“Manurapindoo.”—A mystic curse, used in hunting.

“North.”—The North is regarded by the natives as the great seat of diabolical agency, witchcraft, &c.

“Ngamma.”—A man’s name.

“Nillaro.”—A mountain in the Port Lincoln district.

“O why did you die,” &c.—A literal translation of a lament for the dead.

*** END OF THE PROJECT GUTENBERG EBOOK THE LEGEND OF
KUPIRRI, OR, THE RED KANGAROO ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with

this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official

version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES

EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a)

distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact

links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.